



DEPARTMENT OF AGRICULTURE

Inspection and Consumer Services Division

RULES PERTAINING TO THE ADMINISTRATION AND ENFORCEMENT OF THE SALE OF MEAT ACT METHOD OF SALE OF HOME FOOD SERVICE - Repealed eff. 03/30/2019

8 CCR 1202-12

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Statement of Basis, Specific Statutory Authority and Purpose

Adopted February 13, 2019 – Effective March 30, 2019

Statutory Authority

These Rules are being proposed for repeal by the Commissioner of the Colorado Department Agriculture ("CDA") as set forth in HB 18-1183.

Purpose

The purpose of this rulemaking is to repeal the existing "Rules Pertaining to the Administration and Enforcement of the Sale of Meat Act Method of Sale of Home Food Service" currently codified at 8 CCR 1202-12. HB 18-1183 eliminates the regulation of home food service plans.

Factual and Policy Basis

The Department of Regulatory Agencies performed a Sunset Review in 2017 of the Colorado Sale of Meat Act. The review resulted in the recommendation that the General Assembly eliminate the regulation of home food service plans.

The need for the Departments home food service regulatory program has become obsolete as the number of licensees has declined to less than ten licensees making the cash funded program unsustainable.

House Bill 18-1183 repealed article 35.5 of Title 35 C.R.S. effective July 1, 2018.

Editor's Notes

History

Entire rule emer. rule eff. 07/01/2009; for history and versions prior to 7/1/2009, see 8 CCR 1201-15.

Entire rule eff. 08/30/2009.

Parts 4.01, 8.03 eff. 01/01/2014.

Entire rule repealed eff. 03/30/2019.